

SUPERIOR COURT OF JUSTICE
Thunder Bay Small Claims Court

BETWEEN:

MORRIS JAMES HOLERVICH

Plaintiff

-and-

**HER MAJESTY THE QUEEN IN RIGHT OF ONTARIO AS REPRESENTED BY
MINISTER OF INFRASTRUCTURE; JOHN DOE; PLENARY JUSTICE
THUNDER BAY LT; JOHNSON CONTROLS JCI, JOHNSON CONTROLS L.P., by its
general partner JOHNSON CONTROLS U.L.S.; BGIS GLOBAL INTEGRATED
SOLUTIONS REALTY INC.; BEE CLEAN OFFICE INC.**

Defendants

Appearances:

M. J. Holervich, in person

S.M. Whelan, for the Defendants

Heard: October 26, 2018

REASONS FOR JUDGMENT:

K.J. KELERTAS, DEPUTY JUDGE

Background:

1. The Plaintiff, Morris Holervich, claims for damages against Her Majesty The Queen in Right of Ontario as represented by the Minister of Infrastructure (which is more correctly identified by the Defendants as Ontario Infrastructure Projects Corporation as Agent for Her Majesty the Queen in Right of Ontario, as represented by the Minister of Infrastructure) and other parties responsible for the maintenance of the Thunder Bay Courthouse (“the Courthouse”): Plenary Justice Thunder Bay LP; Johnson Control JCI, Johnson Controls L.P., by its general partner Johnson Controls U.L.C. (collectively referred to herein as “Johnson”); BGIS Global Integrated Solutions Realty Inc. (which is more correctly identified by the Defendants as Brookfield Global Integrated Solutions, referred to herein as “Brookfield”) and Bee Clean Office Inc. (referred to herein as “Bee Clean”)
2. The Plaintiff’s Claim arises out of a slip and fall that occurred at the Courthouse on September 24, 2015.

Summary of the Evidence

3. The Plaintiff is a 61 year old lawyer residing in Thunder Bay. He practices civil litigation with a law firm in Thunder Bay. The Plaintiff attended at the Courthouse on September 24, 2015 for an attendance in Motions Court commencing at 9:30 a.m. The Plaintiff testified that he arrived at the Courthouse at about 9:20 a.m., which is borne out by the swipe card records of the Courthouse which indicate that he came through security near the front doors on the first floor at 9:20:54 a.m.
4. After exiting the elevator on the second floor of the Courthouse, the Plaintiff headed towards the lawyers' lounge located along the north hallway of the second floor. As he walked from the elevator toward the north walkway, he saw a maintenance worker standing on a stepladder and a cleaner mopping the floor. The Plaintiff observed that there was at least one yellow sandwich board-type sign on the floor near the workers with the words "Caution Wet Floor" written on it.
5. As the Plaintiff attempted to step around the stepladder with the maintenance worker still standing on it, the Plaintiff slipped and fell. He initially fell onto his buttocks and then struck his head on the floor, injuring the back of his head. The Plaintiff was momentarily stunned, but he immediately got up and continued to the lawyers' lounge. He went into the washroom in the lounge area to dress for Court.
6. Soon thereafter, Kevin Cleghorn (a fellow lawyer), came into the washroom and noticed that the Plaintiff was bleeding from the scalp and holding a tissue to his head. There was blood on the collar of the Plaintiff's court shirt. Mr. Cleghorn asked the Plaintiff if he was alright, as Mr. Cleghorn was worried that the Plaintiff had suffered a concussion. The Plaintiff told Mr. Cleghorn that he was fine. The Plaintiff then left the lawyers' lounge for Court. The Plaintiff testified that he once again walked past the work area where he had fallen and then headed to Court.
7. The Plaintiff attended Motions Court and spoke to his matter. While the wound on his head was still bleeding during the time he was in court, it was not bleeding profusely. After his matter was heard, the Plaintiff left the courtroom. He was then met by a woman (who he thought was a representative from Court Services, but he did not get her name) with a clipboard who asked the Plaintiff to provide a statement regarding his slip and fall. The Plaintiff declined to do so. The Plaintiff then went back to the lawyers' lounge. As he passed the work area, he made note of the fact that the area around his fall was now cordoned off with stanchions with built-in retractable barriers.
8. Once he arrived back at the lawyers' lounge, the Plaintiff got changed and had his brother (a retired physician) pick him up from the Courthouse. Together, the Plaintiff and his

brother immediately went to the Thunder Bay Regional Hospital and the Plaintiff was quickly seen by an emergency room physician. The Plaintiff's wound did not require stitches. Instead medical adhesive was used to close the wound. The Plaintiff received a CAT scan that afternoon. The CAT scan was normal and the Plaintiff was subsequently sent home sometime after 3:00 p.m. Once home, the Plaintiff changed and went to his law office to attend to some matters.

9. The Plaintiff testified that he had neck stiffness and some pain in the weeks that followed his slip and fall. The Plaintiff's brother attended to the follow-up treatment of his wound. The Plaintiff did not return to hospital and did not seek any additional medical treatment for his injuries. The Plaintiff testified that his injuries had no impact on his work or other daily activities. He described his injuries as causing him some pain and discomfort for a few weeks after his fall. However, he described his injuries variously as "an annoyance" and "nothing serious".
10. Kevin Cleghorn was called as a witness by the Plaintiff. While Mr. Cleghorn admitted that he did not remember every detail of the day in question, he did remember entering the Courthouse between 9:20 a.m. and 9:50 a.m. on September 25, 2015, as he had a matter to speak to in Court at 10:00 a.m. He recalls coming through the security gates on the ground floor of the Courthouse with the Plaintiff and that they chatted. They then went their separate ways, with Mr. Cleghorn first making a stop in the ground floor information area where the Courthouse filing counters are located, and the Plaintiff heading towards the elevators. After Mr. Cleghorn finished his business on the ground floor, he took an elevator to the second floor. When he got off the elevator and began walking towards the lawyers' lounge, he noticed that there were puddles of water on the floor. He testified that he was conscious of the puddles and was very careful as he walked around them, as he had previously encountered wet floors at the Courthouse. As he put it: "I can't afford a fall at my age". He did notice that there were yellow sandwich board-type caution signs on the floor around the water. He did not observe any stanchions or any other types of barriers around the site of the water leak. He did not observe any courthouse personnel or workers in the area of the water on the floor. He testified that he walked unimpeded from the elevator to the lawyers' lounge, where he encountered the Plaintiff as described above. He had no further involvement in this matter.
11. The Defendants called three witnesses:
 - Mr. Shaun Broughton, who was at the time a building operator with Brookfield;
 - Dave Fernie, an employee of Johnson; and
 - Carol Pedwysowski, a cleaner employed by Bee Clean

12. It was Mr. Broughton's evidence that it had rained the night before the incident and into the morning. Water had leaked onto the floor of the second floor north hallway from a skylight. The overnight leak was reported to Mr. Broughton by building security at about 7:00 a.m. Building security had placed a couple of barrels out under the leak to catch the water.
13. Mr. Broughton and Mr. Fernie testified that they went to investigate the leak. There was a substantial amount of water on the floor of the hallway. The barrels placed by security were on the floor under the location of the leak. Mr. Broughton and Mr. Fernie testified that they cordoned off the area with stanchions and retractable barriers that allowed them to restrict access to the area. They both testified that it was the policy of their respective employers to put up barriers around work areas while maintenance in the Courthouse was being performed. They testified that together they put out two bright yellow sandwich boards on the floor around the water. The signs stated "Caution Wet Floor" (in English and French) and were also marked with a red triangular caution symbol of a figure falling backwards. (see Exhibits 6 and 7). They then called for assistance from Bee Clean -the building's resident onsite cleaners- to mop and dry up the water that had pooled on the floor. Ms. Pedwyssocki responded. Mr. Broughton and Mr. Fernie then retrieved a ladder and set it up in the area of the leak so that Mr. Broughton could replace a ceiling tile damaged by the water leak.
14. Both Mr. Broughton and Mr. Fernie testified that the area was cordoned off with stanchions before the Courthouse opened at 8:30 a.m. and before the Plaintiff arrived at the Courthouse. Mr. Broughton and Ms. Pedwyssocki testified that the area continued to be cordoned off with stanchions and retractable barriers at 9:22 a.m., the approximate time that the Plaintiff walked around the work area and subsequently slipped and fell.
15. Mr. Broughton testified that at the time that the Plaintiff entered the work area, he was up on the ladder, but he did not see the Plaintiff fall. Rather, he testified that he heard the Plaintiff fall. Ms. Pedwyssocki was also in the area of the leak, mopping the floor. She did not see the Plaintiff enter the work area, as she had her back to the elevator area at the time. However, she did see the Plaintiff walk quickly past her, slip, fall, and then immediately get up. The Plaintiff then walked quickly away towards the lawyers' lounge. She testified that the Plaintiff appeared to be in a rush as he walked past her and again after he got up after his fall.
16. Mr. Fernie testified that he took two photos of the site of the water leak, one at 9:44 a.m. and the other at 9:45 a.m. (see Exhibits 6, 7, and 8). These photos depict the work area around the location of the water leak as described by Mr. Broughton, Mr. Fernie, and Ms. Pedwyssocki in their testimony.

17. The Defendants also tendered an incident report dated September 24, 2015 prepared by Jon Essa (a manager employed by Brookfield) with the assistance of Mr. Broughton (Exhibit 5), that purported to outline the circumstances surrounding the Plaintiff's slip and fall and the steps taken by the Defendants before and after the incident. Mr. Essa did not testify. It was Mr. Broughton's evidence that the report was prepared within 24 hours of the incident. The report had been served on the Plaintiff and filed with the Court in accordance with the *Rules of the Small Claims Court*. While I admitted the report, I have chosen to give the report little weight, as some of the facts in the report do not accord with the evidence given in court by the Defendants, and the report by and large only reiterates their evidence. Where the report is inconsistent with the evidence of the Defendants' witnesses, I prefer the evidence of the witnesses.

The Law:

18. Section 1 of the *Occupiers' Liability Act*, R.S.O. 1990, c. O.2 ("the Act"), defines an "occupier" as a person in physical possession of premises or a person who has responsibility for and control over the condition of the premises. The statutory standard of care under the Act is set forth in section 3(1):
- 3(1) An occupier of premises owes a duty to take such care as in all the circumstances of the case is reasonable to see that persons entering on the premises, and the property brought on the premises by those persons are reasonably safe while on the premises.
19. Section 3(2) of the Act provides that an occupier's duty of care applies whether or not a danger is caused by the condition of the premises or by an activity carried on on the premises.
20. In *Waldick v. Malcolm* (1989), 70 O.R. (2d) 717 (C.A.); aff'd [1991] 2 S.C.R. 456 (S.C.C.), Blair J.A. stated at paragraph 20 of that decision that section 3(1) of the Act
- ... imposes on occupiers an affirmative duty to make the premises reasonably safe for persons entering them by taking reasonable care to protect such person from foreseeable harm.... The duty is not absolute and occupiers are not insurers liable for any damages suffered by persons entering their premises. Their responsibility is only to take "such care as in all the circumstances of the cases reasonable". The trier of fact in every case must determine what standard of care is reasonable and whether it has been met.
21. In *Kerr v. Loblaw's Inc.*, 2007 ONCA 371, the Court of Appeal further considered the nature of the duty of care. At paragraph 19, Cronk J.A. stated, "...the standard of reasonableness requires neither perfection nor unrealistic or impractical precaution against known risks."

22. In order to establish liability on the part of the Defendants, the Plaintiff must establish, on a balance of probabilities, a causal connection between the alleged negligent acts of the Defendants and the injury suffered.

Issues:

23. It is not disputed that the Defendants are occupiers and that the Plaintiff was a visitor to the premises to whom the Defendants owed a duty of care. The issues for me to decide are:
- a) What was the standard of care required of the Defendants in the circumstances?
 - b) Whether the Defendants met the standard of care?
 - c) If the Defendants breached the applicable standard of care, was the Plaintiff contributory negligent?
 - d) Based on a finding of liability, what are the damages, or conversely if there is no finding of liability, what is an assessment of the Plaintiff's damages?

Findings:

24. In making findings of fact, the court's task is to determine what happened based on a balance of probabilities, taking into account the totality of the evidence. The uncontroverted evidence is that:

- Water from a leaky skylight had pooled on the second floor of the Courthouse.
- Once advised of the existence of the leak and the water on the floor, Mr. Broughton and Mr. Fernie immediately made efforts to repair the leak, and placed bright yellow signs on the floor around the site of the leak, warning of a potential slip and fall hazard.
- Mr. Broughton was in the process of replacing a ceiling tile and Ms. Pedwyssocki was mopping up the water on the floors when the Plaintiff arrived on the scene.
- The Plaintiff walked past the warning signs and the obvious indicia of work being done by Mr. Broughton and Ms. Pedwyssocki in the area of the water leak.
- The Plaintiff then slipped and fell, suffering a minor head injury.

25. All of the witnesses who testified at trial appeared to me to be credible. However, given that the Plaintiff's slip and fall occurred over three years prior to the date of the trial in this matter, it is understandable that there were inconsistencies in the evidence. All of the witnesses except for Mr. Cleghorn testified that there was a ladder set up in the area of the Plaintiff's fall. Ms. Pedwyssocki said that the Plaintiff did not return to the work area after his fall, but rather walked around to the other side of the atrium of the courthouse. The Plaintiff testified that after his fall, he went to the lawyers' lounge and then walked back through the area of the water leak on his way to Motions Court after he had robed. As he

passed through the area of the water leak a second time, he spoke with Mr. Broughton. Mr. Broughton testified that after the Plaintiff's fall, he recalls the Plaintiff returning through the area, but that no one else came through the area, not even Mr. Cleghorn.

26. The most glaring inconsistency in the evidence is that both the Plaintiff and Mr. Cleghorn testified that they observed no stanchions or barriers set up in the area of the leak when they crossed through it on their way to the lawyers' lounge. All three of the Defendants' witnesses said there were barriers installed throughout this time all around the work area. While I find that the Defendants took immediate steps to repair the leak, to mop up the water from the floor, and to place signs around the site of the water leak to warn of the risk of a fall, given that there was not an insignificant amount of water on the floors I find the reasonable standard of care required in the circumstances would have been to also prevent visitors/users of the Courthouse from entering the site of the water leak until it was repaired and until at least most of the water on the floors had been dried up. If the area of the water leak had been cordoned off at the time of the Plaintiff's fall, I would have had no hesitation in finding that the Defendants had fulfilled their duty to take such care as was reasonable in the circumstances to protect the Plaintiff from foreseeable harm.
27. However, I note that both Mr. Broughton and Mr. Fernie initially prefaced much of their evidence regarding the steps they took to address the leak with the phrase "I [or we] would have ...", as opposed to stating what that they actually did at the time. Their evidence was that they had encountered and addressed the clean-up and repair of similar water leaks in the Courthouse before and after this event and that their stated practice was to cordon off work sites or the sites of significant water leaks. While later in their evidence they confirmed that they did in fact take all of the steps that they described to address the leak, and photographs of the scene of the leak taken by Mr. Fernie show the stanchions in place some 20 minutes after the Plaintiff's fall, both the Plaintiff and Mr. Cleghorn were absolutely adamant in their testimony that there were no stanchions or barriers in place when they made their way from the Courthouse elevators to the lawyers' lounge and past the site of the water leak. While Mr. Cleghorn was unsure in his testimony about some facts, I find no reason to doubt his recollection on this point, given that Mr. Cleghorn was an independent witness with no interest in the outcome of the proceedings. This leads me to find that Mr. Broughton and Mr. Fernie were more likely than not mistaken in their recollection that the stanchions and barriers were in place immediately before, during, and immediately after the Plaintiff's fall.
28. I also find that Ms. Pedwyssocki was more likely than not mistaken in her recollection that the stanchions and barriers were in place at the time of the Plaintiff's fall. Had barriers been in place around the site of the water leak, the Plaintiff would have either had to skirt around the barriers (and consequently he would have had to slow down) or the Plaintiff's forward

progress would have been impeded by having to go over or under the barriers. Therefore, if the barriers had been in place, it is more likely than not that Ms. Pedwyssocki would not have observed the Plaintiff moving “quickly” through the area of the water leak prior to his fall.

29. Consequently, I find as a fact that the site of the water leak was not cordoned off at the time of the Plaintiff’s fall. The water leak and the failure to cordon off the area was a proximate cause of the Plaintiff’s fall. In this regard, the Defendants breached their duty of care to the Plaintiff in the circumstances and are liable to him in damages for his resulting injuries.
30. However, I find the Plaintiff contributorily negligent. I need only point out that Mr. Cleghorn -who traversed the area of the leak only minutes after the Plaintiff did- recognized that there was water on the floor, made note of the warning signs placed in the area by the Defendants, and cautiously made his way past the hazard to the lawyers’ lounge. In other words, Mr. Cleghorn recognized the risk of a slip and fall hazard resulting from the wet floors as identified by the occupier and took reasonable care to avoid the risk. I find that the Plaintiff did not. Based on the testimony given by Ms. Pedwyssocki that the Plaintiff was walking quickly as he made his way through the area of the water leak, and the fact that the Plaintiff had an impending scheduled Court appearance at 9:30 a.m., I find that the Plaintiff was in a rush to get to the lawyers’ lounge to robe for Court. As a result, I find that the Plaintiff did not pay sufficient heed to the literal warning signs before him. While I am sympathetic to the Plaintiff and for the injuries he suffered, I find that the Plaintiff was equally responsible his misfortune. Therefore, I apportion liability 50/50 as between the Plaintiff and the Defendants, in accordance with section 3 of the *Negligence Act*, R.S.O. 1990, c. N.1.

Damages:

31. It was agreed that the only pecuniary loss to the Plaintiff would have been the subrogated claim of the Ministry of Health and Long Term Care (“MOHLTC”) for the medical attention that the Plaintiff received for his injuries. This amounted to \$807.90 (see Exhibit 4). The Plaintiff did not claim for loss of income, or any other out-of-pocket expenses.
32. By the Plaintiff’s own admission, his injuries were minor. He reported no scarring, and the resulting pain from a stiff neck and the cut on his head was relatively inconsequential. The Plaintiff submits that I should assess his damages at \$10,000.00. The Defendants say that non-pecuniary damages should be assessed at \$2,000.00.
33. The authorities provided to me by the Plaintiff and counsel for the Defendants were not very helpful in assisting me to arrive at a suitable assessment of damages. None of the decisions specifically dealt with a minor head injury without a concussion, transitory

headaches, or a stiff neck. Rather, the cases provided to me seem to stand for the proposition that the range of damages for relatively minor personal injuries is somewhere between \$500.00 and \$12,000.00. The decisions that assessed damages at the low end of the range provided very little rationale for the quantum awarded. The decisions at the high end of the range took into account that the plaintiffs continued to suffer some residual physical problems or continuing issues with pain well after their mishaps. Mr. Holervich healed relatively quickly from his injuries, suffered pain for a limited period of time, and does not report any continuing medical issues. Therefore, I find that the Plaintiff's injuries support an award of non-pecuniary damages for pain and suffering in the amount of \$5,000.00. Taking into account the apportionment of liability, the Plaintiff is entitled to general damages in the amount of \$2,500.00.

Conclusion

34. There will therefore be judgment for the Plaintiff against the Defendants in the amount of \$2,500.00 in general damages (plus prejudgment interest at the rate of 0.8% from the date of the commencement of the Plaintiff's Claim- January 9, 2017- to date, and postjudgment interest in accordance with the *Courts of Justice Act*, R.S. 1990, c. C.43), and \$807.90 to satisfy the subrogated claim of the MOHLTC for medical expenses. The Plaintiff is also entitled to recover from the Defendants the cost of any filing fees that he paid to the Court during the course of this proceeding.
35. If the parties cannot agree on costs, I will receive brief written costs submissions through the Clerk of the Court pursuant to the following schedule:
 - (i) By the Plaintiff, to be served and filed on the Defendants and filed with the Court on or before November 16, 2018.
 - (ii) By the Defendants, to be served on the Plaintiff and filed with the Court on or before November 23, 2018.
 - (iii) Any reply by the Plaintiff to be served and filed with the Court on or before November 30, 2018.

Dated: November 5th, 2018

Signed "K.J. Kelertas"
K.J. Kelertas, Deputy Judge